

IMO LEG 113

Meeting Summary

05 May 2026



The 113th session of the IMO Legal Committee (LEG 113) was held at the IMO headquarters in London, supplemented by hybrid (remote) participation.

LISCR participated in the following groups in addition to the plenary:

Groups	Agenda item
WG 1	Development of guidelines [or best practices] on the registration of ships and Regulatory scoping exercise of IMO conventions and other instruments available for Member States to further develop actions to prevent unlawful operations including substandard ships

2010 HNS Protocol

LEG 113 considered submissions regarding progress towards the entry into force of the 2010 HNS Protocol and noted that, with eight Contracting States already in place, only four additional ratifications with the required contributing cargo were needed to meet the entry-into-force conditions. LEG 113 further noted that Belgium, Germany, the Kingdom of the Netherlands and Sweden were to ratify the Protocol during the session and, on 14 April 2026, welcomed their joint ratification, thus fulfilling the Protocol's first entry-into-force condition of at least 12 States having expressed their consent to be bound, including four States each with not less than 2 million units of gross tonnage. The Convention was therefore expected to enter into force in November 2027, while additional progress by other States was ongoing. LEG 113 also emphasized the need for coordinated implementation, particularly the timely issuance of compulsory insurance certificates to an estimated 65,000 ships, and encouraged further ratifications, harmonized interpretation, and preparatory work for the first HNS Fund Assembly following fulfilment of the entry-into-force conditions.

Fair treatment of seafarers

Abandonment of seafarers

LEG 113 considered reports on the IMO/ILO joint abandonment database and noted a sharp and continuing increase in abandonment cases, with 409 new cases reported in 2025, significantly exceeding previous records, and a further rapid rise already observed in early 2026, indicating that the trend is worsening. The data showed that many cases lacked the mandatory financial security under the Maritime Labour Convention, 2006 (MLC 2006), confirming that abandonment has become a systemic issue affecting thousands of seafarers. LEG 113 emphasized that effective implementation and enforcement of the MLC 2006 remain critical, while highlighting persistent gaps such as repeat cases, fraudulent flags, deregistration practices during ongoing abandonment cases that could undermine accountability and weaken the

protection framework, even though the responsibility of the flag State remains unchanged, particularly in relation to verification of financial security. LEG 113 stressed the importance of accurate reporting and coordinated action, including strengthened port State control practices, and agreed to request the Joint ILO/IMO Tripartite Working Group (JTWG) to develop a model standard operating procedure (SOP) with timelines to support timely intervention, as well as to consider measures to enhance verification of financial security documentation through the joint database, while avoiding additional administrative burdens. Overall, despite widespread ratification of the MLC, 2006, abandonment cases continue to increase, requiring focused follow-up through JTWG on practical enforcement.

As part of the protection of seafarers on board, abusive behaviour by port State control officers (PSCOs) was raised. However, it was agreed that this matter falls under the remit of the Maritime Safety Committee. In addition, it was pointed out that a distinction should be made between port State control under IMO conventions and inspections carried out by port States for the enforcement of national legislation.

Fair treatment of seafarers detained on suspicion of committing crimes

Industry NGOs reported on efforts to promote the fair treatment of seafarers detained on suspicion of committing crimes, with the discussion placing primary emphasis on the implementation and wider dissemination of the 2024 joint IMO/ILO Guidelines. Delegations stressed that the immediate priority was not further rule-making but effective uptake of these Guidelines, including inter-agency training of prosecutors, police, and maritime authorities, and improved coordination among flag, port and nationality States. While the Guidelines were recognised as a key instrument, concerns remained that seafarers continued to face arbitrary detention, prolonged legal proceedings, and inadequate due process. The Secretary-General reinforced this concern, noting that despite the adoption of the 2024 Guidelines, serious cases persisted globally, including lengthy imprisonment without fair trial, and urged Member States to actively promote and implement the Guidelines within their jurisdictions. LEG 113 ultimately agreed on the importance of the Guidelines and the need for stronger coordination among States.

Separately, LEG 113 considered a case involving suspension of ship registration and its implications for seafarer protection. The discussion clarified that flag State responsibilities accrued prior to deletion from the register do not cease upon de-registration. LEG 113 also noted potential complications arising from fraudulent use of flags, which could obscure responsibility. Overall, the discussion highlighted a regulatory gap in practical enforcement, particularly in cases combining criminalization of seafarers with ship abandonment or suspension of registration, and indicated the need for further legal and operational clarity.

Implementation of the IMO instruments

Impact on shipping and seafarers of the situation in the Black Sea and the Sea of Azov

Two Member States presented opposing views on the impact of the ongoing armed conflict in the Black Sea region on shipping and seafarers. One side reported a continued deterioration of maritime safety and security, citing attacks on ships and port infrastructure, disruption of navigation systems, and risks from mines and unexploded ordnance, while maintaining the operation of a maritime corridor supporting global trade. The other side rejected these claims, alleging misuse of civilian ships and port infrastructure for military purposes and attributing disruptions to external factors, including sanctions and military activities by opposing forces.

Delegations from a broad regional grouping expressed strong concern over the impact of the conflict on seafarers, maritime safety, and the marine environment in the Black Sea area, highlighting damage to infrastructure, risks to crew, and wider consequences for global supply chains and food security. They called for compliance with international law, protection of navigation, and strengthened monitoring and accountability measures. LEG 113 noted the information provided without taking further action.

Insurer's liabilities and verification of insurance policies

A Member State presented a case triggered by the sinking of a ship where subsequent insurance claims could not be effectively enforced, highlighting weaknesses in the verification and reliability of insurance cover. The case exposed situations where ships were operating with inadequate or potentially fraudulent insurance, raising questions about the robustness of existing control mechanisms.

LEG 113 expressed concern that current verification practices were insufficient, with some flag registries lacking the capacity or scrutiny to properly assess insurers, allowing questionable cover to persist and undermining the liability and compensation regime. It was emphasized that insurance certificates should be not only formally valid but also substantively enforceable, while caution was raised against creating a global list of “reputable” insurers due to feasibility and competition concerns. At the same time, stronger transparency and information-sharing were supported.

LEG 113 reaffirmed the importance of the existing framework, in particular LEG.1/Circ.16 on Guidelines for accepting insurance certificates or other financial security required under the IMO liability and compensation conventions, as the basis for verification of insurance providers and financial security.

LEG 113 agreed that the issue should be further considered in the context of fraudulent registration and registry, recognising the linkage between questionable insurance arrangements and broader systemic issues of ship registration and oversight.

Adoption of a standard procedure to determine when a ship ceases to be a "ship" under the 1992 Civil Liability Convention by the Member States of the IOPC Fund

LEG 113 noted the information provided by the IOPC Funds on the adoption by its Member States of guidance establishing a standard procedure to determine when a ship ceases to be a “ship” under the 1992 Civil Liability Convention, including an interpretation of “residues”, without taking further action.

Fraudulent registration and fraudulent registries

Draft guidelines on due diligence to prevent fraudulent registration and fraudulent registries of ships

Liberia, with a co-sponsor, proposed draft Guidelines, in the form of an Assembly resolution, aimed at preventing fraudulent registration and fraudulent registries of ships, in response to continuing cases of misuse of national flags reported to the IMO. It clarified that the issue concerned “Flags of Non-Compliance” rather than distinctions between open and national registries, and set out registry-model-neutral due diligence measures for flag, coastal and port States, as well as for the IMO Secretariat and other stakeholders. The draft covered verification of ship identity and documentation, cross-checking with the Global Integrated Shipping Information System (GISIS) and other databases, oversight of delegated registries and recognized organizations, monitoring through LRIT and AIS, information-sharing and

notification procedures, vigilance in provisional registration, and coordinated action by coastal and port States when discrepancies were detected. It also addressed quality management systems consistent with the IMO Instruments Implementation Code (IIC Code), revocation of registration, use of GISIS as a centralized repository, cooperation with industry initiatives, and capacity development for developing countries, while revoking earlier related Assembly resolutions and circulars.

LEG 113 considered this proposal, together with comments submitted, and recognized the growing scale and sophistication of fraudulent practices, including over 500 falsely flagged ships, misuse of MMSI numbers, counterfeit certificates, and manipulation of AIS data, often targeting vulnerable States.

There was broad support for developing practical, non-binding guidelines to strengthen verification, information-sharing, and coordinated enforcement, while maintaining flag State jurisdiction under UNCLOS and avoiding undue administrative burden. Strong support was expressed for consolidating multiple work streams, with Liberia advocating a single unified instrument covering 3 agenda items set out for the meeting to avoid duplication and provide a coherent framework.

LEG 113 agreed that work should aim to develop one consolidated set of guidelines.

Fraudulent Registries – Information Sharing

LEG 113 noted updates from the Secretariat and Member States on fraudulent registration cases and highlighted the establishment of a dedicated IMO webpage consolidating all relevant circular letters and communications (<https://www.imo.org/en/ourwork/legal/pages/fraudulent-registration-and-fraudulent-registries-of-ships.aspx>) to improve transparency and access to information. The discussion underscored that developing countries, in particular Small Island Developing States (SIDS) and Least Developed Countries (LDCs), continue to be disproportionately targeted and victimized by fraudulent registry practices, resulting in significant reputational damage. LEG 113 also encouraged Member States to strengthen information-sharing by updating registry contact details in GISIS and reporting relevant cases to support coordinated international response.

IMO Guidelines on the registration of ships

LEG 113 considered draft guidelines on ship registration and expressed broad support for practical, non-prescriptive measures to strengthen due diligence and transparency; however, significant overlap was identified with work on fraudulent registration and registries, with many delegations favouring a single consolidated set of guidelines covering all related issues and stakeholders to avoid duplication.

LEG 113 agreed to a draft set of guidelines on ship registration, while noting that full consensus was not achieved on certain key elements, including references to national sanctions and aspects of due diligence, with differing views recorded. LEG 113 also endorsed the integration of relevant elements from the due diligence work into the draft, resulting in new sections and an expanded scope, while deferring the development of a single consolidated set of guidelines covering all related issues to future work.

LEG 113 approved the LEG Circular on *Guidelines on the Registration of Ships*. The guidelines are non-mandatory and intended as a voluntary tool for flag States.

Key elements include:

- Establishment of national legal and administrative frameworks for ship registration;
- Strengthened due diligence on ownership, including verification of documentation and beneficial ownership information;
- Cross-checks against United Nations and relevant national sanctions;
- Verification of ship identity, including IMO number and Continuous Synopsis Record (CSR);
- Requirements for deletion from the previous registry and prevention of dual registration;
- Verification of classification status and compulsory insurance/financial security;
- Enhanced use of information sources and tools, including GISIS and online verification systems;
- Improved cooperation and information-sharing between flag States, including confirmation of deletion and transfer;
- Strengthened oversight of recognized organizations and third-party registry service providers; and
- Emphasis on effective implementation of IMO instruments, including monitoring, surveys and follow-up actions on substandard ships.

Regulatory scoping exercise to further develop actions to prevent unlawful operations

LEG 113 considered the report of the correspondence group on the regulatory scoping exercise (RSE) and expressed broad support for continuing the work to better utilize existing IMO instruments to prevent unlawful operations, including substandard ships, while emphasizing that the main issue lies in implementation gaps rather than the absence of regulations. Concerns were also expressed regarding the role of coastal States. At the same time, concerns were raised regarding overlap and duplication with ongoing work in other workstreams, particularly in relation to ship registration, and it was agreed that such matters should be addressed under the corresponding workstream to avoid fragmentation.

LEG 113 agreed to address the legal matters initially through thematic headings, while continuing its work on an outcome-based approach, which requires distinguishing between matters within the remit of the Legal Committee and those of other relevant bodies. LEG 113 also agreed to examine IMO instruments through key thematic areas, as identified under the road map, rather than on an instrument-by-instrument basis alone.

LEG 113 further agreed that the work was not yet complete and should continue intersessionally through a correspondence group. The further work is to proceed on an outcome-based basis under thematic headings, avoid duplication with related agenda items, and prepare draft terms of reference for a working group at LEG 114.

Piracy

LEG 113 noted updates from the Secretariat on piracy and armed robbery within the UN system and took note of concerns raised by a Member State regarding illegal arrest and blackmail of fishing vessels off Somalia and in the Gulf of Aden, encouraging Member States to report similar incidents.

Maritime Autonomous Surface Ships (MASS)

LEG 113 considered updates from the Secretariat on the work of other IMO bodies on maritime autonomous surface ships (MASS), including progress towards finalizing the non-mandatory MASS Code at MSC 111, and reviewed its own revised road map, which received broad support with minor technical adjustments. During the discussion, one notable view emphasized that the development of MASS must not weaken the fundamental legal link between a ship and its flag State, and that any future framework should remain firmly anchored in the United Nations Convention on the Law of the Sea (UNCLOS), ensuring effective flag State control is maintained despite technological advances.

LEG 113 agreed to adopt the revised road map with minor updates but did not support the proposal to establish a working group at LEG 114, considering such a step premature pending further progress at MSC 111 on the non-mandatory MASS Code.

Work of other IMO bodies

Situation of the Strait of Hormuz

LEG 113 noted the outcomes of 36th extraordinary session of the IMO Council (C/ES.36) and considered documents, addressing the deteriorating situation in and around the Strait of Hormuz and its impact on international shipping. The discussion highlighted serious concerns regarding threats to freedom of navigation, including the absence of any legal basis for tolls, risks to seafarers, and the need for safe evacuation of stranded vessels and crews, with the IMO developing an evacuation framework based on the existing traffic separation scheme (TSS). It was also acknowledged that reported mines in and around the TSS pose a direct risk to navigation safety.

LEG 113 recorded key elements, including:

- Threats and attacks against vessels in and around the Strait of Hormuz;
- Risks of restrictions to navigation, including potential disruption or closure of the Strait;
- Absence of legal basis for tolls or charges for transit passage;
- Risks arising from reported mines in and around the TSS;
- Impacts on safety of navigation, shipping operations and the marine environment;
- Adverse effects on seafarer welfare, including safety, supplies and repatriation;
- Need for safe evacuation and support to stranded vessels and crews;
- Importance of maintaining unimpeded transit passage under international law;
- Continued monitoring of incidents affecting shipping, trade and logistics; and
- Need for coordination among States and relevant organizations to address operational impacts.

At the same time, LEG 113 noted the legal position and that views among delegations remained polarized on geopolitical aspects, with some expressing strong condemnation while others emphasized the need for objective and impartial treatment. LEG 113 reaffirmed that the matter should be kept under review, with a focus on practical measures within IMO's mandate to protect seafarers and ensure safe navigation.

IMO digitalization strategy

LEG 113 noted the outcomes of the 50th session of the Facilitation Committee (FAL 50) on the IMO Strategy on Maritime Digitalization, agreeing to become an associated body, include a corresponding output in the LEG 114 agenda with a 2027 target, defer substantive consideration to LEG 114, and invite participation in the relevant correspondence group, respectively.

Liability regime for alternative fuel

LEG 113 considered the suitability of existing IMO liability and compensation regimes for alternative fuels and confirmed a clear regulatory gap, noting that while fuels such as LNG, LPG, ammonia, hydrogen, methanol, ethanol and biofuels are covered under the HNS Convention when carried as cargo, there is currently no equivalent international liability regime when these substances are used as fuel for propulsion, leaving incidents outside the scope of existing instruments such as the Bunkers Convention. There was broad agreement that this gap undermines legal certainty and victim compensation, with options discussed including developing a new regime, amending the Bunkers Convention, or issuing interim guidance, and the output was accordingly reframed to allow both development and amendment of liability regimes.

Particular attention was given to biofuels and biofuel blends, as these are already widely used in practice, unlike other emerging fuels. The key issue identified was whether such blends fall within the definition of “hydrocarbon mineral oil” under the Bunkers Convention, with strong support for addressing this urgently, including through a possible unified interpretation as an interim solution. Views also emphasized the need to align with MEPC decisions and to clarify terminology, noting that some so-called “alternative fuels” such as LNG and LPG are fossil-based and may require different treatment. LEG 113 agreed to refer all issues to an intersessional correspondence group for further detailed consideration.

The scope of the output was broadened to include “technologies” in addition to fuels, in order to allow consideration of emerging technologies that may impact liability and compensation regimes, including areas such as nuclear propulsion, even though these were not substantively discussed at LEG 113.

Maritime security

LEG 113 considered a submission on transnational organized crime in the maritime sector, highlighting growing concerns over illicit activities leading to the detention, prosecution and abandonment of seafarers, often without their knowledge or sufficient evidence. There was broad support for strengthening legal protections and international coordination, while emphasizing the need to ensure fair treatment of seafarers and avoid duplication with the work of other IMO bodies. LEG 113 agreed to establish an intersessional correspondence group to advance this work, while noting that amendments to existing instruments, including the ISPS Code, would be premature at this stage.

Any other business

The United Nations Convention on the International Effects of Judicial Sales of Ships

LEG 113 noted the entry into force of the Beijing Convention on the Judicial Sale of Ships on 17 February 2026 and the launch of a new GISIS JSS module to support IMO's repository role by recording notices and certificates of judicial sales. The initiative was welcomed as enhancing transparency and legal certainty for purchasers and financiers, with growing participation noted, and Member States were encouraged to utilize the module to report relevant instruments, accordingly.

Further information

For further information please contact: imo@liscr.com

Annex

Provisional list of circulars

- LEG Circular on Guidelines on registration of ships
- LEG.1/Circ.18 on Method of work of the Legal Committee